government by the desition of its
councils made the preparation of
the navy and army and Was
Waiting another report from the
high commissioner. Still con-
tinuely the Genba marn Was
ordered to be anchored at Jin-
Jsin to provide for any events
and arrived at there after ten
days.

Questions to Which replies are to
be made, in as brief delay as
possible by the Legal advisor
to the Department of Foreign
Affairs, for the information of
H. I. Ms government.

1

Can Mr. Bingham's letter to
general Legendre, copy of Which,
marked R, is annexed, be con-
strued into an order not to
proceed to Aboriginal Formosa?
and, if so, Was he justified in
issuing such an order before
Japan had placed herself in
a state of War With China,
and before he had ascertained
Whether general Legendre Was
enlisted

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enlisted for the naval or military force attached to the Mission.

2

It appears in the memo submitted to Mr. Bingham on or about the 18th of April last that, in the series of labors incumbent upon the High commissioner about to be sent to aboriginal Formosa, there might possibly occur two phases—

One of conciliation and forbearance, the military and naval forces with which the High commissioner was to be provided to be displayed only, not used, and no intimation that they would used to be given, and the other of active warfare, which would have to be resorted to under the command of general Yami and Okamato, but only after the peaceful efforts of the High Commissioner, general Saigo, had failed.

General Legendre was expected to render assistance to the High Commissioner during the first phase of the mission, as will plainly appear from the instructions issued to him by the Prime Minister. Under his immediate orders were Lieut. Com. Cassel and Lieut Wasson. Lieut. Com. Cassel was sent on board of a transport, not a man of War, and was expected to reconnoitre the East Coast of the island, in order to find a suitable landing for the mission

On

on or in the vicinity of the Bontan territory. A force of fifty marines was put on board this transport to protect him in case of any attack by the Bontans, who, we had so many reasons to believe, would at first be hostile. In this respect the duties devolving upon Lieut. Com. Cassel differed little, or not at all, from those which he would have been called upon to perform had he remained on board the Kshnecbot to carry out the orders of the U. S. admiral a per letter copy of which, marked C, is hereto annexed. In the face of these facts, was Mr. Bingham justified in protesting against the employment of the above named gentlemen by the Ja-

panese government?

3

Can the action of Japan in sending a mission to Aboriginal Formosa, taken in the sense which may be attached to it from the statements made in the memo submitted to Mr. Bingham on or about the 18th of April last, be construed into an equivalent of a declaration of war against China? If so, wherein is the difference between the present action of Japan and the course taken by the British in March, 1867 as described in the United States Diplomatic correspondence for 1867, / Mr. Allen to Mr. Seward

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Seward, no 20 April 7th 1867.
and by the Americans in the
same year as recorded in the
Report of the Secretary of the
Navy, 1867, pages 7, 8 and 9;
also pages 54 to 64.) Admiral
Bell went to aboriginal Formosa
to obtain redress for the murder
of his countrymen having pre-
viously ascertained, through
one of his authorities that the
inhabitants of aboriginal Formo-
sa were not subject to their
laws. (see Report of the Se-
cretary of the Navy, 1867 page
47.) The Japanese commissioner
goes for the same purpose, the
government of Japan having
previously ascertained, through
her ambassador at Peking that
China claims no jurisdiction

over the country of the Formosan
aborigines. Admiral Bell secur-
ed the services of four British
gentlemen to aid him in ac-
complishing his purpose, viz Dr.
Manson, Mr. Taylor Mr. Pick-
ering, and Mr. Carroll. The
Japanese commissioner took with
him four Americans. If there
was no violation of international
law in the one case, it seems
that there can be none in the
other.

Make full reply to this ques-
tion as much as possible quot-
ing authorities.

4

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4 The invasion of aboriginal
Formosa

Formosa by Admiral Bell could have been construed into an act of War against China, it Would not have been attempted Without the sanction of Congress. But it Was attempted Without the sanction of Congress, (see Report of the Secretary of Navy for 1867, page 7.) as Well as Without that of China; (see Report of the Secretary of Navy for 1867, page 8.) and yet it received the approval of the President (see Diplomatic Correspondence Mr. Seward to Mr. Burlingame, No. 213, August 23d 1867.) and elicited no protest from China. Is not this a proof that the govt. of both the United States and China look upon Aboriginal Formosa as being Without the jurisdiction of the latter? If so, the aboriginal

tribes of Formosa, not being regularly constituted authorities with whom the United States have treaties of amity and peace, do the citizens of the United States violate the provisions of the U.S. statutes in engaging in War against them under the flag of a nation friendly to their country?

5

The action of admiral Bell, as alluded to in Question No 4 was, as We have seen, approved by the President and never protested against by China. When the U.S. Consul for Amoy made his agreement With the Chief of the eighteen tribes in 1867, the Chinese General commanding the escort given

to

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to the Consul Was not a party to the contract. (see U. S. Diplomatic correspondence, 1868-9. China pages 505 to 510.) This agreement was ratified in 1869 by the U. S. consul, the commissioner of Customs for Southern China & Formosa, Mr. Mann, being a witness to the instrument (see commercial Relations, 1869. page 92.) In the case of the Wreck of the London Castle, relief Was afforded the crew by the British consul, and not by China. (see Mr. Warren's report, copy of which signed by Mr. Warren is in the hands of General Legendre.) The murder of the Japanese by the Boutans in 1871 Was investigated by the U. S. consul for Amoy, and not by the Chinese (see despatch No. 73 of the U. S.

consul for Amoy to Mr. Low U. S. Minister, dated 17th April 1872. a printed copy of which is in General Legendre's hands.)

Not setting aside the declaration of China to officers of the United States and of Japan that the aboriginal portion of the island of Formosa is not subject to the Imperial crown, and admitting for a moment that the region does belong to China, still are We not bound to say that, in thus allowing the officers of foreign power to settle by means of arms and negociations such matters of dispute directly, China has created a precedent Which Japanese can invoke in justification of her action in the present case, more especially as that precedent has been created by a country

country Who has it inserted in all her treaties that she will not deny to one nation any of the privileges which she grants to another?

6

Is not the fact that, of all that was known of the island of Formosa by the Dutch in 1635, only the Chinese possessions therein, (that is to say the Nothern and a portion of the Western Coasts) are marked on the most recent Chinese maps of Formosa, a prima facie proof that the aboriginal portion, which is indicated on all the foreign maps since 1635 is independent from Chinese

rule? / see Chang sue King Yu Kings map of Formosa, in Chinese; map of the jesuits taken from the Nouvel atlas de la Chine par M.D. anville, La Haye, MDCCXXXVII; l'Isle de Formosa, etc; Histoire des voyages, Tome V, page 74, La Haye MDCCXLIX; Ka art Van het Eyland Formosa, etc etc, by J. Van Braam and G Onder de Linden, etc, 1935; Yze, in Chinese; The rising of the sun in the Eastern Ocean, (Eastern Formosa) Jaitan Yze, in Chinese; map of Formosa in the expedition of Commodor Perry to Japan; all the British charts; and Formosa island and the Pescadores, China U.S. commercial Relations, 1869. page 168) and in the absence of all other documents relating to the island is not Japan justified in being

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being guided by the only geographical authorities extant, viz, the charts of Commodor Brooker from 1868 to 1872 and the map of Formosa, as published in the commercial Relations of the United States, 1869, page 1087. In the former the Chinese and the aboriginal possessions are partially designed and separated by a dotted line; in the latter the divisions are fully and distinctly drawn.

Does not the declaration said to have been recently made by China to the effect that the aboriginal portion of the island does belong to her merely recognize the message sent to the President of the United States in 1863 by the Emperor of China that he had received commands from Heaven

to sway with tender care and rule all the world and that therefore the United States was a dependency of China? But these declarations concerning America does not seem to have much annoyed the Minister Burlingame. (see Diplomatic correspondence, 1863, Part 2 China Page 923 Enclosure B to No 33 Mr. Burlingame to Mr Seward.) Should the alleged late assertions of China concerning Formosa, in presence of the facts just quoted, be taken into more serious consideration by Mr Bingham,

7

The presumption in favor of aboriginal Formosa is not being

a

a portion of Chinese territory be-
ing so strong, and resting upon
such precedents created by the
government of the United States
itself, is it not to be inferred
that the late protest of the Ame-
rican Minister was merely intend-
ed to intimidate Japan into
not engaging in a scheme which
he does not approve of, and which
he can not oppose by any other
means?

8

Did Japan violate any of
the rights of the United States, or
ignore any of the obligations to-
ward her country under the
existing treaties when she chart-

ered the S.S. New York? If so,
explain why, and quote the law.
If not, make it apparent and try
to explain what could have been
Mr. Bingham's object in protest-
ing against her being chartered?

9

Had Mr. Bingham the right
to stop the "New York" from
proceeding on her voyage in com-
pliance with the terms of her
charter party, copy of which, mark-
ed D, is hereto annexed? If not,
under what circumstances would
he have been justified in stop-
ping her? Quote the laws and
explain the same.

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10.

If, after she has duly objected Mr. Bingham's protest to the citizens of the United States connected with the Mission to aboriginal Formosa, those citizens persist in following the Mission and Japan allows them to do so does she violate any rule of international courtesy or law, inflict any Wrong on the United States, or make herself liable for damages to America or any other country?

11

All protests are generally followed by counter protests or

replies. Has Mr. Bingham's protest been followed by a counter protest issued by the Minister for Foreign affairs, or has any concession or admission been made that would render the issuing of such a paper inadvisable? If not, would it not be advisable to issue a counter protest which might be the means of inducing Mr. Bingham to reconsider his steps and remove the obstacles which he has thrown in the way of the several American citizens connected with the Mission, and which now prevents them from joining the same?

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No.

U. S. Legation Japan.
Yokei. 19 April. 1874.

General C. W. Legendre
Nagasaki.

Sir

From official information this day received I deem it due to you and to the United States government to notify you, as I hereby do, not to proceed in the service of Japan to Formosa with an armed force until you shall have received further advices from the gov't of Japan and of the United States. I am, Sir,

Your obedient servant.
(signed) Jno A. Bingham.

B.

C. W. Legendre.

Whereas H. I. J. M's government has decided to negociate with the inhabitants of aboriginal Formosa, you will exercise your knowledge and experience of that land in assisting the High commissioner to tame and tranquillize the natives of that island, and make them comply with our wishes you will superintend all the affairs in connection with the conferences with the Chinese local authorities and foreign consuls in that country under instructions from the High commissioner.

8th day 4th month } (signed) Sanjo Sanyoshi
7th year of Meiji } Prime Minister.

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6

U.S.S. Hartford
Flag Ship of the Asiatic Station
Shanghai Dec. 3rd 1873

Sir

When the U.S.S. Richmond under your command is ready to move you will proceed through the Inland sea, stopping a few days at Kobe, to Nagasaki where you will take stores &c if needed then you will proceed to Shanghai and after remaining a few days at that port thence to Amoy taking the passage inside the islands.

At Amoy you will seek such information as may be useful to you concerning the coast of Formosa, the anchorages &c and after a short stay there you will proceed to visit Ke Lai Wan foo and Tamsui, Island of Formosa.

At these places you will obtain all the information possible to get concerning the harbors, anchorages, people, supplies to be obtained, articles produced, and trade export and import, in fact, all information which may be useful in making complete sailing directions, and you will make full reports upon these matters.

From the last port in Formosa visited, you will proceed to Nagasaki and await further orders you will report

from

from time to time your move-
ments, giving in all cases,
the dates of your arrivals in
and departures from port.

Very respectfully
(signed) Thornton A. Jenkins
Comdg the U.S. Naval forces
on the Asiatic Station

Lieut Commander
Douglas Cassel
Comdg the U.S.S. "Kohankot"
Yokohama

C

This agreement made this
first day of April 1876 at
Yokohama, by and between the
agent of the Pacific mail steam
ship company and Goshida
Diro, acting for the Finance
Department of the Japanese go
vernment is as follow:

The agent of the P.M.S.S
Co agrees to charter the S.S.
"New York" to the Financial Depa-
rtment, for a voyage from this
port to Nagasaki, thence to the
southern part of the island of
Formosa, where she will land
without delay any troops or stor-
es, with baggage, that may be
put on board at Nagasaki
by the govt, at any one point
desig

designated by the officer accompanying the same.

The O.C. New York
is due here the 12th instant, and
We trust she Will reach Nagasaki the evening of the 17th or
early in the morning of the 18th
in season to take stores and
baggage in board that day.

The government are allowed not over three days in
Nagasaki and agree to land
everything in Formosa three days
after reaching Formosa if the
weather is suitable, or sooner
if possible, and as soon as
everything is out of the steamer,
she shall be released from
her engagement, free to proceed to any port the agent
of this Co may direct.

The government agree to
furnish food for all troops of
every description put on board
ship finding Wood & Water.

Should any officer Wish to
take his meals in the cabin,
he Will be allowed to do so by
paying one dollar each per day
to the Purser.

Should any damage happen to the steamer While on the
Voyage, the expens of repairs to
be borne by the Co's.

For and in consideration
of the above agreement being
faithfully performed, the Japanese
government agree to pay to the
Pacific Mail Co. the sum of
sixteen thousand five hundred
(16.500^{00}) dollars Mexican, one
half of it being paid down upon
the

the signing of this agreement, the balance being paid upon the return of the ship to the port of Yokohama. In Witness whereof both parties set their names to this document, as being binding upon each the day and the date first written.

前断十一条疑問ニ付スミッツ氏答辨

Terashima Munenori
Gaimukio.

Sir

I received from your hand on the 22nd May 1874, a paper containing questions, to which, it was said on the envelope "replies are to be made in as brief delay as possible, by the Legal adviser to the Department of Foreign affairs, for the information of H. J. M.'s government." This paper is not signed by any body, and bears no date.

The reason for replying to it is, that I consider your handing it to me as equivalent to a request or direction for me to reply. I therefore proceed